

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

-----X
VERONICA ROUAMBA,

SUMMONS

Plaintiff,

-against-

Plaintiff resides at:
2413 Matthews Avenue
Apartment: 2
Bronx, NY 10467

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER JERRISON
LORA, SHIELD #2246 OF THE 49TH PRECINCT, and JOHN
AND JANE DOE ARRESTING OFFICERS OF THE 49TH
PRECINCT,

Defendants.

-----X
To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the Complaint in their action and to serve a copy of your Answer, or, if the Complaint is not served with their Summons, to serve a notice of appearance on the Plaintiff's attorney within 20 days after service of their Summons or within 30 days after the service is complete if their Summons is not personally delivered to you within the state of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of the venue designated is the place of incident.

Dated: New York, New York
January 10, 2024

**LAW OFFICE OF
ANDREW C. LAUFER, PLLC**

/s/ Andrew C. Laufer

By: Andrew C. Laufer, Esq.,
Attorney for Plaintiff
VERONICA ROUAMBA
264 W 40th Street, Suite 604
New York, New York 10018
(212) 422-1020

DEFENDANT'S ADDRESSES

THE CITY OF NEW YORK
100 Church Street, 4th Floor
New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT
c/o CITY OF NEW YORK
100 Church Street, 4th Floor
New York, New York 10007

POLICE OFFICER JERRISON LORA,
SHIELD #2246 OF THE 49TH PRECINCT
2121 Eastchester Road
Bronx, NY 10461

JOHN AND JANE DOE ARRESTING
OFFICERS OF THE 49th PRECINCT
2121 Eastchester Road
Bronx, NY 10461

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

-----X
VERONICA ROUAMBA,

VERIFIED COMPLAINT

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER JERRISON
LORA, SHIELD #2246 OF THE 49TH PRECINCT, and JOHN
AND JANE DOE ARRESTING OFFICERS OF THE 49TH
PRECINCT,

Defendants.

-----X

Plaintiff, by and through her attorney, Law Office of Andrew C. Laufer, PLLC complaining
of the defendants herein, upon information and belief, respectfully show to their Court, and allege
as follows:

PRELIMINARY STATEMENT

1. That at all times hereinafter mentioned, the plaintiff was a resident of the County of Bronx,
City and State of New York.

2. That at all times hereinafter mentioned defendant, THE CITY OF NEW YORK was and is
a municipal corporation, duly organized and existing under by virtue of the laws of the State of
New York.

3. That at all times hereinafter mentioned, defendant NEW YORK CITY POLICE
DEPARTMENT was and is a municipal corporation, duly organized and existing under by virtue
of the laws of the State of New York.

4. That at all times hereinafter mentioned defendant, POLICE OFFICER JERRISON LORA,
SHIELD #2246 OF THE 49TH PRECINCT, was and still is employed with the New York City
Police Department.

5. That at all times hereinafter mentioned defendants, JOHN AND JANE DOE ARRESTING OFFICERS OF THE 49TH PRECINCT, were and still are employed with the New York City Police Department.

6. That prior to the institution of their action, a Notice of Claim was duly served upon and filed with the CITY OF NEW YORK on behalf of plaintiff.

7. That at all times herein mentioned, POLICE OFFICER JERRISON LORA, SHIELD #2246 OF THE 49TH PRECINCT, was acting within the scope and course of their employment with the New York Police Department, and under color of State Law.

8. That at all times herein mentioned, JOHN AND JANE DOE ARRESTING OFFICERS OF THE 49TH PRECINCT, were acting within the scope and course of their employment with the New York Police Department, and under color of State Law.

9. That at all times herein mentioned, POLICE OFFICER JERRISON LORA, SHIELD #2246 OF THE 49TH PRECINCT and JOHN AND JANE DOE ARRESTING OFFICERS OF THE 49TH PRECINCT, were acting in their individual and official capacity as employees of defendants THE CITY OF NEW YORK (CITY) and NEW YORK CITY POLICE DEPARTMENT (NYPD).

10. That all the causes of action pleaded herein fall within one or more of the exceptions set forth in New York's Civil Practice Law & Rules 1602 with respect to joint and several liability.

STATEMENT OF FACTS AS TO ALL CAUSES OF ACTION

11. On or about March 17, 2023 at approximately 9:00 a.m., the plaintiff, VERONICA ROUAMBA, was outside her apartment building at 2413 Matthews Avenue, Bronx, NY 10467, when her and her neighbor got into a small dispute, her dog lunged at the neighbor and the police were called. The neighbor claimed her dog bit her and defendants, POLICE OFFICER JERRISON

LORA, SHIELD #2246 OF THE 49TH PRECINCT and JOHN AND JANE DOE ARRESTING OFFICERS OF THE 49TH PRECINCT, proceeded to arrest her. While being transported to the precinct, plaintiff was thrown into the back seat of the police cruiser. POLICE OFFICER JERRISON LORA, SHIELD #2246 OF THE 49TH PRECINCT and JOHN AND JANE DOE ARRESTING OFFICERS OF THE 49TH PRECINCT, were driving and speeding recklessly causing plaintiff's body to collide with multiple parts of the vehicle, including a duffle bag of night sticks in the back seat. As a result of the reckless driving and speeding, plaintiff was caused to sustain multiple injuries, including but not limited to bruising on her arms, thighs, and breasts, knee pain and fractured ribs. The plaintiff was then maliciously prosecuted by and at the direction of the said individuals as well as otheir agents, servants and/or employees of the City of New York, including but not limited to, agents employed by the CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER JERRISON LORA, SHIELD #2246 OF THE 49TH PRECINCT and JOHN AND JANE DOE ARRESTING OFFICERS OF THE 49TH PRECINCT.

12. That the examination of plaintiff (than claimant) was held by defendants on November 13, 2023 pursuant to Municipal Law 50H within ninety (90) days after filing of the aforementioned Notice of Claim.

13. More than thirty (30) days have elapsed since the service of said Notice of Claim upon defendants and defendants have failed, neglected and/or refused to pay, settle, compromise or adjust the claim of the plaintiff herein.

14. Their action has been commenced within one year and ninety (90) days after the within cause for action arose including but not limited to any equitable tolling of the statutory time period.

15. That at all times hereinafter defendant, THE CITY OF NEW YORK, was and is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.

16. That at all times hereinafter defendant, THE NEW YORK CITY POLICE DEPARTMENT, was and is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.

17. That at all times hereinafter mentioned defendant, POLICE OFFICER JERRISON LORA, SHIELD #2246 OF THE 49TH PRECINCT, was and still is employed with the New York City Police Department.

18. That at all times hereinafter mentioned, JOHN AND JANE DOE ARRESTING OFFICERS OF THE 49TH PRECINCT were and still are employed with defendants, THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT.

19. That at all times hereinafter mentioned, POLICE OFFICER JERRISON LORA, SHIELD #2246 OF THE 49TH PRECINCT and JOHN AND JANE DOE ARRESTING OFFICERS OF THE 49TH PRECINCT were acting in their individual and official capacity as an employee of defendants, the CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT.

20. That all the causes of action pleaded herein fall within one or more of the exceptions set forth in New York's Civil Practice Law and Rules 1602 with respect to joint liability.

21. The Defendants, POLICE OFFICER JERRISON LORA, SHIELD #2246 OF THE 49TH PRECINCT and JOHN AND JANE DOE ARRESTING OFFICERS OF THE 49TH PRECINCT, under color of state law, subjected Plaintiff to the foregoing acts and omissions without due process of the law, thereby depriving Plaintiff of her rights, privileges and immunities secured by the Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution, including

without limitation, deprivation of the following constitutional rights: (a) freedom from unreasonable searches and seizure of her person, including the excessive use of force; (b) freedom from arrest without probable cause; (c) freedom from false imprisonment, meaning wrongful detention without good faith, reasonable suspicion or legal justification of which Plaintiff was aware and did not consent; (d) freedom from the lodging of false and over charges against them by police; (e) freedom from abuse of process and malicious prosecution; and (f) the enjoyment of equal protection, privileges and immunities under the laws.

22. That all the causes of action pleaded herein fall within one or more of the exceptions set forth in New York's Civil Practice Law and Rules 1602 with respect to joint liability.

FIRST CAUSE OF ACTION FOR VIOLATIONS OF PLAINTIFF'S RIGHTS UNDER THE FOURTH, FIFTH, SIXTH, EIGHTH, FOURTEENTH AMENDMENTS TO THE UNITED STATES CONSTITUTION, NEW YORK CITY AND NEW YORK STATE LAW PREDICATED UPON USE OF EXCESSIVE FORCE UPON PLAINTIFF

23. Plaintiff repeats and realleges each and every allegation contained above as though set forth at length herein.

24. That on or about March 17, 2023 at approximately 9:00 a.m. defendants, THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, its agents, servants, and employees including but not limited to Defendants, POLICE OFFICER JERRISON LORA, SHIELD #2246 OF THE 49TH PRECINCT and JOHN AND JANE DOE ARRESTING OFFICERS OF THE 49TH PRECINCT, jointly and severally in their capacity as police officers, wrongfully handcuffed, and seized the plaintiff about her person, drove and sped recklessly causing plaintiff's body to collide with multiple parts of the vehicle, including a duffle bag of night sticks in the back seat causing her to sustain physical injuries, including but not limited to bruising on her arms, thighs, and breasts, knee pain and fractured ribs. At no time did defendants have legal cause to handcuff, seize or touch plaintiff nor did plaintiff consent to their illegal touching nor was privileged by law.

25. All of the acts and omissions by the individual defendants, described above were carried out pursuant to overlapping policies and practices of the CITY which were in existence at the time of the conduct alleged herein and were engaged in with the full knowledge consent and cooperation and under the supervisory authority of defendants CITY and the NEW YORK CITY POLICE DEPARTMENT.

26. Defendants CITY and NYPD, by their policy-making agents, servants and employees, authorized sanctioned and/or ratified the individual defendants' wrongful acts and/or failed to prevent or stop those acts and/or alleged acts to continued.

27. Defendants arrested and detained plaintiff in the absence of any evidence of criminal wrongdoing notwithstanding their knowledge that said arrest and detention would jeopardize plaintiff's liberty, well-being, safety and constitutional rights.

28. At all times mentioned herein said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.

29. On or about March 17, 2023, defendants did seize, search and tackle to the ground the person of the plaintiff without a court authorized arrest or search warrant. They did physically seize the person of the plaintiff during the arrest process in an unlawful and excessive manner.

30. The plaintiff was falsely arrested, unlawfully detained and suffered great injury without the defendants processing probable cause to do so.

31. The above actions of defendants resulted in the plaintiff being deprived of the following rights under the United States Constitution.

- a. Freedom from illegal search and seizure
- b. Freedom from arrest

c. Freedom from unlawful imprisonment.

32. The defendants subjected plaintiff to such deprivations, either in a malicious or reckless disregard of the plaintiff's rights.

33. Defendant CITY has grossly and negligently failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when the police officers are not in possession of a court authorized arrest warrant and where an individual especially as here, has not committed a crime and has not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest and the arrest should be based upon probable cause.

34. The direct proximate results of the defendants' acts are that plaintiff suffered severe and permanent injuries of a psychological and physical nature. He was forced to endure pain and suffering to her detriment.

**SECOND CAUSE OF ACTION AGAINST DEFENDANTS PURSUANT TO 42 U.S.C §
1983 FOR DENIAL OF RIGHT TO A FAIR TRIAL**

35. Plaintiff repeats and realleges each and every allegation contained above as though set forth at length herein.

36. That the aforementioned actions of the Defendants constitute a denial of Plaintiff's right to a fair trial, in violation of Plaintiff's rights under the Fifth, Sixth, and Fourteenth Amendments to the United States Constitution, and entitle Plaintiff to recover monetary damages under 42 U.S.C. 1983.

37. The aforementioned constitutional violations are all actionable under and pursuant to 42 U.S.C. §§ 1983 and 1988.

**THIRD CAUSE OF ACTION FOR NEGLIGENT HIRING, TRAINING, RETENTION
AND SUPERVISION**

38. Plaintiff repeats and realleges each and every allegation contained above as though set forth at length herein.

39. That the aforesaid action and resulting injuries to plaintiff were due to the negligence of the CITY in the hiring, retention and training of its employees, including POLICE OFFICER JERRISON LORA, SHIELD #2246 OF THE 49TH PRECINCT and JOHN AND JANE DOE ARRESTING OFFICERS OF THE 49TH PRECINCT causing the plaintiff to be injured without justifiable reason or ground thereof and in all ways being grossly negligent and engaging in wanton and reckless conduct.

FOURTH CAUSE OF ACTION – MONELL VIOLATIONS

40. Plaintiff repeats and realleges each and every allegation contained above as though set forth at length herein.

41. That plaintiff was deprived of her rights, privileges and immunities secured by the Constitution of the United States of America and the State of New York, and her rights pursuant to 42 USC sec. 1983 by those who under color of a statute or regulation of a state, caused plaintiff to be so deprived.

42. That the aforesaid actions by the defendants, their agents, servants and/or employees were done pursuant to an official municipal policy or custom of the city, which policy involved the deliberate indifference to the health, safety, and welfare of the plaintiff, in failing to properly discipline the defendants and for the purpose of thwarting the fair administration of justice in violation of the 4th and 5th Amendments to the United States Constitution.

43. The above actions of defendants resulted in the plaintiff being deprived of the following rights under the United States Constitution.

- a) Freedom from illegal search and seizure;
- b) Freedom from arrest;
- c) Freedom from malicious prosecution;
- d) Freedom from unlawful imprisonment;
- e) Freedom from the denial of a right to fair trial

44. The defendants subjected plaintiff to such deprivations, either in a malicious or reckless disregard of the plaintiff's rights.

45. Those defendants herein, their agents, servants and/or employees motivated in part by racial and/or ethnic animus, conspired to deprive plaintiff of her federal civil and constitution rights, in violation of 42 USC 1985.

WHEREFORE, plaintiff demands judgment against defendants, and each of them, on all of the foregoing causes of action, in the form of compensatory damages for plaintiff's pain and suffering, loss of enjoyment of life, and economic loss, in an amount that exceeds the jurisdictional limits of all lower courts that otherwise would have jurisdiction in the matter and plaintiff further demands punitive damages on all causes of action, in an amount to be determined by the trier of fact, together with attorney's fees and together with costs and disbursements.

DATED: New York, New York
January 10, 2024

**LAW OFFICE OF
ANDREW C. LAUFER, PLLC**

/s/ Andrew C. Laufer

By: Andrew C. Laufer, Esq.,
Attorney for Plaintiff
VERONICA ROUAMBA
264 W 40th Street, Suite 604
New York, New York 10018
(212) 422-1020

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

-----X
VERONICA ROUAMBA,

VERIFICATION

Plaintiffs,

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER JERRISON
LORA, SHIELD #2246 OF THE 49TH PRECINCT, and JOHN
AND JANE DOE ARRESTING OFFICERS OF THE 49TH
PRECINCT,

Defendants.

-----X

ANDREW C. LAUFER, an attorney duly admitted to practice law in the Courts of New
York, affirms the following to be true:

1. That I am a principal of the Law Office of Andrew C. Laufer, PLLC, attorney for the plaintiff in the within action. That I have read the foregoing complaint and know the contents thereof, and that the same are true to my knowledge, except as to the matters herein stated to be alleged upon information and belief, and that as to these matters I believe them to be true.
2. That the sources of my information and knowledge are records and investigation reports maintained within the file.
3. That the reason their verification is made by the affirmant and not by the plaintiff is that the plaintiff does not reside in the County of New York, which is the county wherein their firm maintains its office.

Dated: New York, New York
January 10, 2024

[signature on following page]

**LAW OFFICE OF
ANDREW C. LAUFER, PLLC**

/s/ Andrew C. Laufer

By: Andrew C. Laufer, Esq.,
Attorney for Plaintiff
VERONICA ROUAMBA
264 W 40th Street, Suite 604
New York, New York 10018
(212) 422-1020